



CHAPTER xxi.

An Act to provide for the transfer to the mayor aldermen and burgesses of the borough of Newport (Isle of Wight) of the undertaking of the Newport (Isle of Wight) Gas Company to confer further powers upon that Corporation with regard to their gas and other undertakings and to make further provision with regard to the health local government improvement and finance of the said borough and for other purposes.

[22nd May 1946.]

WHEREAS the borough of Newport in the administrative county of the Isle of Wight (hereinafter called "the borough") is under the management and local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas the Newport (Isle of Wight) Gas Company (hereinafter called "the company") were incorporated by the Newport (Isle of Wight) Gas Act 1870 and under and by virtue of the Newport (Isle of Wight) Gas Acts and Orders 1870 to 1936 are supplying gas within limits of supply which comprise the greater part of the borough and the parish of South Arreton in the rural district of the Isle of Wight as the borough and the said parish are constituted at the date of the passing of this Act:

And whereas the authorised capital of the company is one hundred and four thousand pounds of which eighty-five thousand pounds has been issued divided into fifty-four thousand pounds of consolidated ordinary stock six thousand pounds of new ordinary stock and twenty-five thousand pounds of four per centum preference stock:

And whereas the company have raised on mortgage of their undertaking the sum of seven thousand five hundred pounds bearing interest at the rate of three and one-half per centum per annum:

And whereas the company have agreed to sell and the Corporation have agreed to purchase the undertaking of the company upon the terms set forth in this Act and it is expedient that such sale and purchase should be sanctioned and that the powers contained in this Act in relation to the supply of gas should be conferred on the Corporation as owners of the said undertaking:

And whereas it is expedient to make the further provision with reference to the health local government and improvement of the borough contained in this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas an estimate has been prepared by the Corporation for the purposes hereinafter mentioned and such estimate is as follows:— £

For the alteration enlargement extension
improvement or renewal of the Corpora-
tion's gasworks for the provision of new
gas mains and the extension of gas mains 28,000

And whereas the several works included in such estimate are permanent works and it is expedient that the Corporation should be empowered to borrow money for those purposes as provided by this Act:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Newport (Isle of Wight) Corporation Act 1946.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Transfer of gas undertaking.

- Part III.—Supply of gas.
 Part IV.—Streets and buildings.
 Part V.—Infectious disease and sanitary provisions.
 Part VI.—Food.
 Part VII.—Provision of concert halls &c.
 Part VIII.—Good rule and government.
 Part IX.—Finance.
 Part X.—Miscellaneous.

PART I.
—cont.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following exceptions and modification:—

(i) sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act; 8 & 9 Vict. c. 18.

(ii) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section:

(2) The Gasworks Clauses Act 1847:

10 & 11 Vict. c. 15.

(3) The Gasworks Clauses Act 1871 (except the words “and the provisions of the Lands Clauses Consolidation Act 1845 sections 128 to 132 (both sections inclusive) shall apply to any such sale” in section 6 of that Act).

34 & 35 Vict. c. 41.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts incorporated herewith or by the Public Health Act 1936 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

26 Geo. 5. & 1 Edw. 8. c. 49.

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the borough of Newport (Isle of Wight);

“The council” means the council of the borough;

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council;

“The town clerk” “the treasurer” “the medical officer” “the surveyor” and “the sanitary inspector” mean respectively the town clerk the treasurer the medical officer of health the surveyor and any sanitary inspector of the borough;

PART I.
—cont.

- “ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;
- “ The company ” means the Newport (Isle of Wight) Gas Company;
- “ The liquidator ” means the liquidator of the company appointed under the section of this Act of which the marginal note is “ Winding up and dissolution of company ”;
- “ The day of transfer ” means the first day of July nineteen hundred and forty-six;
- “ The undertaking of the company ” means the undertaking of the company as existing on the day of transfer including all the lands buildings gasworks works machinery mains pipes meters plant stock spare parts tools apparatus vehicles stores furniture investments securities funds reserves surplus profits book debts consumers’ deposits bank balances cash plans maps books reports specifications letters records documents rights powers easements interests privileges and other real and personal property assets and effects then vested in or belonging to the company or to which the company shall then be entitled (whether the same shall be in the possession of the company or in that of their solicitors agents resident or consulting engineers or other persons) but excluding therefrom the directors’ minute books and all books and papers relating exclusively to the shareholders in and the constitution of the company which it may be necessary for the company to retain for the purpose of the winding up of the company and subject to all mortgages and charges in respect of borrowed moneys raised by the company and owing at the day of transfer and to all debts outgoings liabilities and obligations of the company outstanding at the day of transfer;
- “ Corporation stock ” means Newport (Isle of Wight) Corporation four per centum gas stock created by this Act;
- “ The gas limits ” means the limits within which the Corporation are for the time being authorised to supply gas;
- “ The gas undertaking ” means and includes the gasworks of the Corporation and the works connected therewith vested in and transferred to them by or under this Act and all gasworks and works connected therewith which may hereafter be constructed or acquired under any of the powers of this Act or any other Act or Order;

- “ The Corporation undertakings ” means the undertakings of the Corporation (including the harbour and harbour undertaking under the River Medina Navigation Act 1852) from time to time existing from which revenue is derived;
- “ The county council ” means the county council of the administrative county of the Isle of Wight;
- “ The Minister ” means the Minister of Health;
- “ Daily penalty ” means a penalty for every day on which any offence is continued by a person after conviction;
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ The Lands Clauses Acts ” except in the section of this Act of which the marginal note is “ Consideration for transfer ” means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part II of the Town and Country Planning Act 1944 and by this Act;
- “ Food ” has the meaning assigned to it by section 100 (Definitions) of the Food and Drugs Act 1938;
- “ Statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament authorised to invest trust money and any mortgage bond debenture debenture stock or other security authorised by or under any Act of Parliament of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any security of the Corporation;
- “ The revenues of the Corporation ” includes the general rate fund and all rates Exchequer contributions and other revenues whether arising from land or undertakings or from any other source receivable by the Corporation;
- “ Authorised security ” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;
- “ The Act of 1933 ” means the Local Government Act 1933;

41 & 42 Vict.
c. 76.

9 & 10 Geo. 5.
c. 57.

1 & 2 Geo. 6.
c. 56.

38 & 39 Vict.
c. 83.

PART I.
—cont.
38 & 39 Vict.
c. 55.

“ The Act of 1936 ” means the Public Health Act 1936;
“ The Public Health Acts ” means the Public Health Act
1875 and the Acts amending the same.

PART II.

TRANSFER OF GAS UNDERTAKING.

Transfer of
company's
undertaking.

5.—(1) On the day of transfer the undertaking of the company shall by virtue of this Act be transferred to and vested in the Corporation.

(2) On and from the date of the passing of this Act the undertaking of the company shall be carried on until the day of transfer by the company for the benefit of the Corporation and with due regard to the interests of the Corporation as the prospective owners of the undertaking after the day of transfer and accordingly the company shall be deemed to have been authorised to make and incur all such proper expenditure and liabilities on capital and revenue account as the company shall deem necessary for the carrying on of the undertaking of the company in the ordinary course of business and the directors of the company shall continue to act at the same rate of remuneration as on the first day of January nineteen hundred and forty-five and the company shall keep proper accounts but shall not make any expenditure on capital account exceeding one hundred pounds for any one item except at the request or with the consent in writing of the Corporation under the hand of the town clerk nor shall the company (except with the like consent which shall not be unreasonably withheld) increase (except in accordance with any award of the National Joint Industrial Council for the Gas Industry) the remuneration salaries or emoluments of auditors officers or servants of the company beyond their usual remuneration salaries and emoluments at the rates operative on the first day of January nineteen hundred and forty-five nor grant any pensions or retiring gratuities.

Consideration
for transfer.

6.—(1) As the consideration for the transfer to the Corporation of the undertaking of the company the Corporation shall in pursuance of the provisions of subsection (2) of this section issue to the liquidator Corporation stock to the aggregate amount of one hundred and forty-five thousand pounds for distribution among the holders of consolidated ordinary stock new ordinary stock and preference stock of the company in the following proportions:—

(a) two hundred pounds of Corporation stock in respect of each one hundred pounds of consolidated ordinary stock or new ordinary stock of the company; and

(b) one hundred pounds of Corporation stock in respect of each one hundred pounds of preference stock of the company;

and so in proportion for any amount of any of such stock of the company less than one hundred pounds.

(2) (a) For the purpose of facilitating the distribution of the Corporation stock forming the consideration for the transfer among the holders of ordinary and preference stock of the company the company or the liquidator shall not less than twenty-one days before the day of transfer deliver to the Corporation a statement containing the names and addresses of such holders and of the amount of Corporation stock of which each such holder is to be registered as the holder.

(b) The Corporation shall issue and deliver to the liquidator on the day of transfer or as soon as reasonably practicable thereafter the appropriate certificates made out in the names of such holders.

(3) As from the date on which the statement referred to in the preceding subsection is delivered to the Corporation the registers of transfer of the company shall be closed.

7. All transfers or other dispositions of any ordinary or preference stock of the company made but not registered before the day of transfer shall notwithstanding the provisions of this Act be valid and have due effect given to them respectively as transfers or dispositions of the amounts of Corporation stock which represent the ordinary or preference stock of the company thereby expressed to be transferred or disposed of and which are substituted for the same by this Act although the instrument of transfer or disposition shall describe the same as ordinary or preference stock of the company. Certificates &c. to remain in force.

8. The directors may declare and pay at any time after the first day of June nineteen hundred and forty-six dividends (less income tax) in respect of the half-year ending on the thirtieth day of that month at rates not exceeding four per centum per annum on the preference stock of the company and seven per centum per annum on the consolidated ordinary stock and new ordinary stock of the company. Payment of dividends for year 1946.

9. The receipt in writing of the liquidator for any Corporation stock delivered to the liquidator shall effectually discharge the Corporation from the obligation to deliver the amount of the Corporation stock which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application Receipt for consideration

PART II.
—cont.

thereof and if from any cause the Corporation are unable to obtain any such receipt they may lodge the Corporation stock in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 and a certificate given in accordance with those rules stating that such stock has been so lodged shall have the same effect for the purposes of this and the next succeeding section of this Act as the receipt of the liquidator.

Evidence of
transfer.

10. The production of a King's Printers' or Royal Assent copy of this Act duly stamped together with a receipt for the consideration for the purchase of the undertaking of the company purporting to be signed by the liquidator shall (unless it be proved that the consideration has not been paid) be conclusive evidence in all courts and proceedings of the transfer of the undertaking of the company to the Corporation and its vesting in them.

As to
company's
mortgage.

11.—(1) The mortgage of seven thousand five hundred pounds upon the undertaking of the company if outstanding on the day of transfer shall be deemed to have been executed by the Corporation in the exercise of a statutory borrowing power conferred upon them by the section of this Act of which the marginal note is "Power to borrow" and together with the interest accrued or accruing since the date on which payment of interest was last made thereon shall on that day become and thereafter be a charge on the revenues of the Corporation as if the Corporation were substituted for the company in respect of such mortgage but in other respects shall be subject to the same terms as would have been applicable thereto respectively if this Act had not been passed and the Corporation shall indemnify and hold harmless the company against any claims in respect thereof.

(2) The Corporation may by agreement with the holder of such mortgage at any time substitute for such mortgage so held by him any security of the Corporation or pay off the amount secured by such mortgage and redeem the security with moneys raised under the powers of this Act and the holder of such mortgage whether or not he is a trustee or under any disability may agree with the Corporation to accept any security of the Corporation in lieu of money in consideration for his mortgage.

Compensation
to directors
and officers of
the company.

12.—(1) The Corporation shall on the day of transfer or as soon as possible thereafter issue Corporation stock as compensation for loss of office—

- (a) to the persons who immediately before the day of transfer were directors of the company to the nominal amount of five thousand and seventy pounds to be

divided among them as they or a majority of them may agree: PART II.
—cont.

Provided that if any person who was a director of the company on the first day of June nineteen hundred and forty-five has before the day of transfer ceased to be a director the said amount of Corporation stock shall be reduced by an amount equal to seven times the amount which that director received from the company as director's fees in respect of the year ended the thirty-first day of December nineteen hundred and forty-four;

(b) to the persons holding office immediately before the day of transfer as auditors of the company to the nominal amount of one hundred and twenty-six pounds to be divided between them in the same proportion as were the fees paid to them by the company in respect of the year ended the thirty-first day of December nineteen hundred and forty-four;

(c) to the persons holding office immediately before the day of transfer as accountants of the company to the nominal amount of two hundred and thirty-six pounds.

(2) The Corporation shall as from the day of transfer pay—

(a) to Stanley Fred Holmes the secretary of the company an annuity during his life at the rate of four hundred and fifty pounds;

(b) to Sydney William Ibbotson the engineer and manager of the company an annuity during his life at the rate of four hundred pounds.

(3) The annuities referred to in subsection (2) of this section shall be paid by monthly instalments on the last day of each month.

13.—(1) Unless otherwise agreed between the Corporation and Charles William Grant (hereinafter referred to as "Mr. Grant") the company's distribution and sales manager— Employment
of Charles
William
Grant by
Corporation.

(a) he shall be employed by the Corporation in a similar capacity and he shall continue to perform the duties of that office until he attains the age of sixty years and for such further period as shall be agreed between the Corporation and Mr. Grant until he attains the age of sixty-five years at a rate of remuneration and upon and subject to terms and conditions not less favourable to him than those at upon and subject to which he was employed by the

PART II.
—cont.

company immediately before the eighteenth day of May nineteen hundred and forty-five and the Corporation shall not dismiss him for any cause other than misconduct or inefficiency before he attains the age of sixty years;

(b) if such employment terminates at or after the attainment by Mr. Grant of the age of sixty years the Corporation shall as from the date of such termination pay to him an annuity during his life at the rate of not less than two hundred and fifty pounds by monthly instalments on the last day of each month;

(c) Mr. Grant shall be entitled to receive from the Corporation in addition to such remuneration as aforesaid payments by way of cost of living bonus to the extent only of the excess (if any) of the rates of such bonus paid by the Corporation to their employees after the date of transfer over the rates so paid immediately before that date.

1 Edw. 8. &
1 Geo. 6. c. 68.

(2) Notwithstanding anything in the Local Government Superannuation Act 1937 Mr. Grant shall not become or be an employee of the Corporation for the purposes of that Act.

Pensions to
certain
employees of
company.

14. The Corporation shall pay to the following employees of the company during their respective lives by way of pension the weekly sums set opposite to their names in the following table:—

Name of employee				Pension			
				£	s.	d.	
G. H. Taylor	...	...	...	1	5	0	per week
F. Birch	...	...	...	1	5	0	" "
A. Chiverton	...	...	...	1	0	0	" "
H. Boon	...	...	...	0	17	6	" "
F. Check	...	...	...	0	17	6	" "
G. E. Barber	...	...	...	0	15	6	" "
F. Lockyer	...	...	...	0	15	0	" "

Allowances
to persons on
war service.

15. (a) The Corporation shall pay to every person who was in the employment of the company and who immediately before the day of transfer is engaged on war service an allowance at the same rate for the same period and subject to the same conditions as the allowance payable to him by the company immediately before the first day of June nineteen hundred and forty-five.

(b) For the purpose of this subsection "war service" has the meaning assigned to that expression by the Reinstatement in Civil Employment Act 1944 and nothing in this section shall alter or affect the operation of the provisions of that Act.

7 & 8 Geo. 6.
c. 15.

16.—(1) In this section the expression “ officer ” means any employee of the company (other than the directors the secretary the engineer and manager the distribution and sales manager the accountants and auditors) in the permanent employment of the company immediately before the day of transfer and as to whom either of the conditions in the definition of the expression “ officer ” in section 40 of the Local Government Superannuation Act 1937 is satisfied. Provided that nothing in the National Health Insurance Contributory Pensions and Workmen’s Compensation Act 1941 shall affect the construction of the said definition of the expression “ officer ” in the said Act of 1937 in its application to this Act.

PART II.
—cont.
Existing
officers.

(2) Every officer (in this section referred to as an “ existing officer ”) other than an officer who desires voluntarily to relinquish his office or situation shall as from the day of transfer become an officer of the Corporation and shall hold his office or situation by the same tenure and upon like terms and conditions under the Corporation as he would have held the same under the company if the transfer of the undertaking of the company had not taken place and while performing the same or analogous duties shall receive not less salary than he would have been entitled to from the company if the transfer of the undertaking of the company had not taken place.

(3) Every existing officer shall be entitled to receive from the Corporation in addition to such remuneration as aforesaid payments by way of cost of living bonus to the extent only of the excess (if any) of the rates of such bonus paid by the Corporation to their employees after the date of transfer over the rates so paid immediately before that date.

(4) Every existing officer shall perform such duties in connection with the gas undertaking as he may be required to perform by the Corporation.

(5) The Corporation may abolish the office or situation of any existing officer which they deem unnecessary and any existing officer required at any time within a period of five years after the day of transfer to perform duties which are not analogous or are an unreasonable addition to those which as an officer of the company in connection with the undertaking of the company he was required to perform may relinquish his office or service.

(6) Every existing officer whose office is abolished within a period of five years after the day of transfer or who so relinquishes his office as aforesaid or who otherwise suffers any direct pecuniary loss within the said period in consequence

PART II.
—cont.

of the undertaking of the company being transferred to the Corporation shall be entitled to be paid by the Corporation compensation for such pecuniary loss.

(7) If within a period of five years after the day of transfer the services of any existing officer are dispensed with by the Corporation because his services are not required and not on account of misconduct or incapacity or the salary of any existing officer is reduced on the ground that his duties have been diminished in consequence of the undertaking of the company being transferred to the Corporation such existing officer shall be deemed to have suffered direct pecuniary loss in consequence of the transfer of the undertaking of the company to the Corporation.

(8) In determining the compensation payable to any existing officer who becomes entitled to compensation in pursuance of this section the provisions of the Fourth Schedule to the Local Government Act 1933 shall apply with the following and any other necessary modifications:—

- (a) service with any gas undertaker shall be treated as service with a local authority;
- (b) any reference in that schedule to an officer shall be construed as a reference to an existing officer as defined in this section;
- (c) any reference in that schedule to the local authority or the clerk of the authority shall be construed as a reference to the Corporation or the town clerk.

Existing
servants.

17.—(1) Every employee of the company not being an officer as defined in the section of this Act of which the marginal note is “Existing officers” who has been in the continuous service (as hereinafter defined) of the company for a period of five or more years immediately before the day of transfer (in this section referred to as an “existing servant”) and who in consequence of the undertaking of the company being transferred to the Corporation has suffered loss of employment or diminution of wages otherwise than on grounds of misconduct incapacity or superannuation shall have compensation (as hereinafter defined) paid to him by the Corporation provided that the claim for compensation is made within a period of five years after the day of transfer.

(2) (a) The compensation payable in cases where an existing servant has suffered loss of employment shall be a total sum of money payable by weekly instalments or otherwise as hereinafter mentioned and calculated in accordance with the following scale:—

- (i) Men of or over 50 years of age two weeks’ pay (as hereinafter defined) for each year of service;

- (ii) Men of or over 45 years of age but under 50 years of age one and a half weeks' pay (as hereinafter defined) for each year of service;
 - (iii) Men under 45 years of age one week's pay (as hereinafter defined) for each year of service;
 - (iv) The above compensation shall be paid by weekly instalments except in special cases when an application may be made for a lump sum payment and if the Corporation decline to make a lump sum payment then the decision shall rest with the National Joint Industrial Council for the Gas Industry;
 - (v) The amount of the weekly instalment shall be agreed with the existing servant but shall not be at the rate of less than ten shillings per week;
 - (vi) In the event of the death of the existing servant prior to the payment of the full amount to which he is entitled under this section the balance outstanding shall be paid to his "dependants" (as defined by the Workmen's Compensation Acts).
- (b) Where an existing servant has suffered diminution of wages (otherwise than on grounds of misconduct incapacity or superannuation) compensation shall be payable on the above-mentioned scale but in calculating the same the week's pay shall be deemed to be the amount by which his normal weekly wages shall have been diminished.
- (3) Where an existing servant is entitled otherwise than under this section to receive from the Corporation any sum or sums of money by way of compensation for loss of employment such sum or sums shall be deducted from the compensation receivable under this section.
- (4) If an existing servant refuses an offer of work under the Corporation for which he is suitable he shall be deemed for the purposes of this section not to have suffered any loss of employment.
- (5) In this section "continuous service" includes service in any of His Majesty's Forces during the war of 1914-1918 or the present war "week's pay" means the sum payable in respect of a normal working week at plain time rates inclusive of war wages advances.
- (6) Any difference which may arise with regard to the interpretation of this section shall be settled on the application of the existing servant concerned or the Corporation by the National Joint Industrial Council for the Gas Industry whose decision shall be final and binding upon the parties concerned.

PART II.
—cont.
Financial
interest of
employees
in gas
undertaking.

18.—(1). The profit-sharing scheme of the company in force immediately before the day of transfer (in this section referred to as “ the company’s scheme ”) shall be continued by the Corporation and the existing rules and regulations of the company’s scheme (in this section referred to as “ the existing rules ”) shall as modified by this section and with any other necessary modifications apply to the company’s scheme as continued by the Corporation (in this section referred to as “ the Corporation’s scheme ”).

(2) Without prejudice to the generality of the provisions of subsection (1) of this section the existing rules of the company’s scheme shall continue in force until the Corporation’s scheme is determined as hereinafter provided subject to the following specific modifications:—

- (a) The persons participating in the Corporation’s scheme shall be such members of the company’s scheme as are taken over and employed by the Corporation in connection with the gas undertaking (in this section referred to as “ the co-partners ”) and as were co-partners in the company’s scheme on the first day of June nineteen hundred and forty-five and no other persons shall be eligible for admission to the Corporation’s scheme;
- (b) The chairman of the co-partnership committee shall be appointed by the Corporation;
- (c) The following provision shall be substituted for paragraph 6 of the existing rules:—

“ The Corporation shall set aside annually an amount which bears to the sum of three hundred and sixty-one pounds the same proportion as the number of shares in the Corporation’s scheme for the time being held by co-partners for the time being in the employment of the Corporation in connection with the gas undertaking bears to the total number of shares in the company’s scheme immediately before the first day of June nineteen hundred and forty-five:

Provided always that the Corporation shall not in any year set aside a greater sum than three hundred and sixty-one pounds ”;

- (d) There shall be substituted for—

(i) “ the chairman of directors ” in every place where the expression occurs in the existing rules the words “ a person appointed by the Corporation ”;

(ii) “ the company’s business ” in paragraph 19 of the existing rules the words “ the undertaking ”;

(iii) “ the directors of the company ” “ the directors ” “ the board of directors ” “ a director of the company ” or “ the company ” in every place where any of those expressions occurs in the existing rules the words “ the Corporation ”;

(iv) “ the company’s secretary ” or “ the secretary ” in every place where either of those expressions occurs in the existing rules the words “ a principal officer of the undertaking ”;

(v) “ the company’s manager ” in every place where that expression occurs in the existing rules the words “ the manager of the undertaking ”;

(vi) “ this scheme ” in every place where that expression occurs in the existing rules the words “ the Corporation’s scheme ”;

(e) In paragraph 15 of the existing rules the words “ or twenty-five per centum of the whole number for the time being of the co-partners (whichever shall be the less) ” shall be inserted after the words “ not less than ten co-partners ”.

(3) The Corporation’s scheme shall determine and cease to have effect on and from the date on which the employment of the last co-partner shall terminate and all requisite steps shall then be taken for the scheme to be wound up forthwith.

(4) The Corporation having set aside annually the appropriate amounts referred to in subsection (2) (c) shall be exonerated from and against all claims and demands which may be made by any beneficiary under the Corporation’s scheme in respect of any maladministration of the funds of that scheme.

(5) If the council under the Local Government (Superannuation) Act 1937 shall by statutory resolution specify the servants employed in their gas undertaking as a class or description the members of which are to be contributory employees any such servant who is a co-partner may elect either to continue as a co-partner in which case he shall not be eligible to be an employee within the meaning of the said Act or not so to continue in which case he shall cease to be a co-partner and he shall become a contributory employee and shall thereupon be entitled to withdraw his share in the co-partnership fund and the interest thereon with which he is then credited.

PART II.

—cont.

Copy of Act
to be
registered.

19.—(1) The Corporation shall forward to the Registrar of Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Corporation shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the copy is omitted to be forwarded.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the registrar by the Corporation on such copy being registered the fee of five shillings.

Actions not
to abate.

20. If on the day of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding shall be pending or existing against or in favour of the company in relation to any property debt liability or obligation transferred to the Corporation the same shall not abate or be discontinued or in anywise prejudicially affected by reason of such transfer but the same may be continued prosecuted and enforced by or against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by against or in favour of the company if this Act had not been passed.

Contracts with
company to
be binding on
Corporation.

21. All agreements conveyances contracts deeds and other instruments entered into or made with or by the company prior to and in force on the day of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the company the Corporation had been a party thereto. The Corporation shall indemnify the company against all claims and demands under such agreements conveyances contracts deeds and other instruments.

Evidence of
books and
documents.

22. All books and documents which if the transfer of the undertaking of the company had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Inspection of
books &c.

23. The Corporation before the day of transfer and thereafter the company shall be entitled to have access to and take copies of all documents to be handed over to the Corporation so far as the same may be necessary for the purpose of enabling the Corporation or the company to execute any of the provisions of this Act and the Corporation shall also be entitled at any time and for the like purpose to have access to and to take copies of all documents to be retained by the company.

24.—(1) (a) From and after the day of transfer the company shall subsist only for the purpose of receiving and recovering the Corporation stock to which the stockholders of the company are entitled under this Act.

PART II.
—cont.
Winding up
and dissolution
of company.

(b) The liquidator shall have power and authority to take with respect to the company all proceedings necessary for carrying into effect the purposes of this section.

(2) (a) The liquidator shall be such person as the directors of the company shall not less than twenty-eight days before the day of transfer appoint and shall be paid by the Corporation the sum of one hundred pounds in cash as remuneration for his services.

(b) Forthwith after the making of such appointment the secretary of the company shall inform the Corporation in writing of the name and address of the person so appointed.

(3) The company shall on publication in a local newspaper circulating in the county of the Isle of Wight of a notice signed by the liquidator and certifying that all the provisions of this Act relating to the company have been complied with be dissolved.

(4) In case the liquidator is for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any certificate of stock ought to be delivered or who can give an effectual receipt for the same he may pay such stock into court as if it belonged to a trust of which he were trustee.

25.—(1) Subject to the provisions of this Act any Corporation stock issued to the holders of consolidated ordinary stock new ordinary stock or preference stock of the company in pursuance of this Act shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the said stocks of the company were respectively held immediately before the day of transfer and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the stock and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the Corporation stock.

Substituted
securities to
be held in
same rights.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific nominal amount of consolidated ordinary stock new ordinary stock or preference stock of the company shall be held to apply to the Corporation stock which under the provisions of this Act is issued in substitution for such specific nominal amount of consolidated ordinary stock new ordinary stock or preference stock of the company.

PART II.
—cont.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the Corporation stock so issued to them in pursuance of the provisions of this Act for the consolidated ordinary stock new ordinary stock or preference stock of the company held by them and may hold dispose of or otherwise deal with such Corporation stock in all respects as they might have held disposed of or otherwise dealt with the consolidated ordinary stock new ordinary stock or preference stock of the company for which the Corporation stock is substituted.

Payments to funds established under section 7 of Gas Regulation Act 1920.
10 & 11 Geo. 5.
c. 28.

26. For the purposes of subsections (3) and (4) of section 7 (Remuneration and expenses of gas referees) of the Gas Regulation Act 1920 any therms in the form of gas sold by the company in the preceding year for the purposes of the said subsection (3) shall be deemed to be therms in the form of gas sold by the Corporation.

Corporation not to be exempt from any general Act relating to re-organisation of gas industry.

27. Nothing in this Act shall exempt the Corporation from the provisions of any general Act relating to the re-organisation of the gas industry passed before or after the passing of this Act or from any provision made in pursuance of any such general Act.

PART III.

SUPPLY OF GAS.

Maintenance and construction of gasworks &c.

28. On and after the day of transfer the Corporation may upon the lands described in the First Schedule to this Act so long as they are possessed of the same maintain and continue the gasworks constructed by the company thereon and may upon those lands so long as they are possessed of the same erect maintain alter extend improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the gas limits and may also upon all the said lands work up and convert residual products arising directly or indirectly from the manufacture of gas by them or purchased by them under the powers conferred by section 4 of the Gas Undertakings Act 1929 and for this purpose the Corporation may purchase from any source and use such material as is required to work up and convert any such residual products.

19 & 20 Geo. 5.
c. 24.

Limits for supply of gas.

29. The Corporation may supply gas in—

- (a) the borough except so much thereof as is included within (i) the limits for the supply of gas of the Cowes Urban District Council under the Cowes

Urban District Council Gas Act 1897 and (ii) the limits for the supply of gas of the Ryde Gaslight Company under the Ryde Gas Act 1904;

PART III.
—cont.

(b) the parish of South Arreton in the rural district of the Isle of Wight.

30. The charges which the Corporation may make for gas supplied within the gas limits are those set out in the Third Schedule to this Act as amended by this Act. Charges for supply of gas.

31.—(1) The Corporation may for the purpose of supplying gas to the owner or occupier of any premises within the gas limits exercise with respect to any street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the gas limits subject nevertheless to the observance of the like conditions to those imposed on an exercise of such powers within the said limits. As to streets outside gas limits.

(2) Nothing in this section shall entitle or require the Corporation to supply gas for any premises outside the gas limits.

(3) In this section the word "street" includes any square court or alley highway lane road thoroughfare or public passage or place.

32. The Corporation may within the gas limits lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with the gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable to the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay pipes for ancillary purposes.

Provided that no such main pipe or culvert shall be laid down in any street unless the consent in writing of the persons having the control or management of the street or being responsible for the repair thereof shall first have been obtained but such consent shall not be unreasonably withheld and any difference arising between the Corporation and such persons shall be determined by an arbitrator to be appointed on the application of either party by the Minister of Fuel and Power.

33.—(1) The Corporation may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive power heating ventilating cooking or any other purpose (in this section referred to as "fittings") and may provide all Power to supply gas fittings &c.

PART III.
—cont.

materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed.

(2) Any fittings let for hire by the Corporation under the foregoing provisions of this section and marked or impressed with a sufficient mark or brand indicating the Corporation or their predecessors as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be; and

(b) shall not be deemed landlord's fixtures notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises.

As to position
of gas meters.

34. Every gas meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid between the main and the meter shall be placed as near as practicable to the Corporation's main but within the outside wall of the building and when any such meter has been placed the person placing the same shall give notice thereof to the Corporation and thereupon any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend for the purpose of inspecting such meter and building and if the officer is not permitted to make the inspection or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with:

Provided that in the case of any building in connection with which there is provided outside the building accommodation reasonably approved by the Corporation for the meter or a separate meter-house such meter may be placed in such accommodation or meter-house instead of within the outside wall of the building.

Relief from
obligation to
supply gas.

35.—(1) Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the Corporation is in the opinion of an arbitrator appointed as hereinafter provided insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the gas limits for which such works have been provided (so far as such requirements could reasonably have been foreseen) the Corporation notwith-

standing anything in any other enactment shall not be obliged to give for any purpose other than lighting or domestic use—

PART III.
—cont.

- (a) a new supply of gas for the premises of any person demanding such supply at any time after the passing of this Act; or
- (b) an increased supply of gas (other than an increased supply necessitated by any reduction of the declared calorific value of the gas);

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any enlargement or alteration of or addition to the distribution works of the Corporation.

(2) The foregoing provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as "the applicant") shall enter into a written contract with the Corporation—

- (a) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the Corporation may reasonably require; or
- (b) to make such payment to the Corporation (in addition to any payments to be made from time to time for gas supplied to the applicant) as the Corporation may reasonably require;

(according as the Corporation may in their discretion determine) in consideration of or by way of contribution towards the expenses to be incurred by the Corporation in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security for the payment of all moneys which may become due under the contract as the Corporation may reasonably demand.

(3) If any question shall arise under the provisions of this section between the Corporation and the applicant as to the sufficiency of the distribution works of the Corporation or as to whether such new or increased supply would necessitate the laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in addition to payments for gas supplied) required by the Corporation or as to the nature or amount of the security demanded by the Corporation such question shall be referred to and determined by an arbitrator to be appointed (failing agreement between the Corporation and the applicant) by the Minister of Fuel and Power on the application of either party after notice in writing to the other of them and the decision of such arbitrator shall be final and binding.

PART III.
—cont.

(4) In determining any such question as aforesaid the arbitrator shall have regard to the following among other considerations (that is to say):—

- (a) The total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the Corporation may be called upon to supply gas to the applicant;
- (b) The capital expenditure which the Corporation would have to incur in the laying of a new main or the making of any enlargement or alteration of or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply; and
- (c) How far such capital expenditure may become unproductive to the Corporation in the event of the cesser of the new or increased supply.

As to
construction
and placing of
pipes &c.

36. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Corporation may if they think fit make a specification or specifications with regard to the minimum size and the material of the pipes with the fittings thereof which are to be laid by the owner or occupier of any premises on those premises either in the first instance or on the occasion of any renewal and different specifications may be made for different classes of premises or for particular premises having regard to the probable maximum consumption of gas thereon at any one time but a specification shall have no force or effect until it has been approved by the Minister of Fuel and Power who before giving such approval shall refer the matter to an independent gas engineer and may if he thinks fit direct such engineer to hold a public inquiry into any proposed specification and to have regard to any representations made to the said Minister by any persons who appear to the said Minister to be affected by the specification and who attend such inquiry:
- (2) (a) The Corporation shall publish once in the London Gazette and once in each of two newspapers circulating within the gas limits a notice in a form to be approved by the said Minister of any application made by them to the said Minister for approval of any specification which notice shall specify a place at which a copy of the proposed

specification has been deposited for public inspection and shall contain an intimation that any person affected by such proposed specification may make representations in writing to the said Minister within a period to be specified in the notice;

PART III.
—cont.

(b) As soon as practicable after the said Minister has approved any specification the Corporation shall comply with any directions given to them by the said Minister as to the publication or service of copies of the specification as approved or of notice of the giving of such approval;

(c) A copy of every specification approved by the said Minister under this section shall be kept for public inspection at the gas office of the Corporation and copies of every such specification shall be purchaseable by any person at the said office at the price of sixpence for each copy:

- (3) When at any time after any such specification has come into force any such pipe or fittings as aforesaid is or are about to be laid or placed notice thereof shall be given to the Corporation accompanied by a description of the size and materials of the proposed pipe or fittings and of the purposes for which the gas to be supplied through the same is intended to be used:
- (4) The Corporation shall as soon as practicable after receiving such notice (after making such inspection if any of the said pipe or fittings and of the premises in which the same is or are proposed to be laid or placed as they may deem necessary) intimate in writing to the person giving the notice their approval or disapproval of the pipe or fittings as complying or not complying with the appropriate specification:
- (5) No such pipe or fittings as aforesaid shall be laid or placed unless or until the same shall have been approved as aforesaid and when any such pipe or fittings has or have been laid or placed notice thereof shall be given to the Corporation and the pipe or fittings shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation or until the pipe or fittings as laid or placed has or have been inspected and approved by the Corporation whichever shall first happen:
- (6) Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend for the purpose of any such

PART III.
—cont.

inspection as aforesaid and if the officer is not permitted to make the inspection or if the pipe or fittings is or are not according to the appropriate specification of the Corporation they may refuse to supply gas to the premises until the provisions of this section have been complied with:

- (7) The provisions of this section relating to pipes and the fittings thereof shall not apply to any pipes or fittings belonging to a railway company and laid or placed or intended to be laid or placed in any premises (not being a dwelling-house or premises appurtenant to a dwelling-house) of that company—
 - (a) elsewhere than between the main of the Corporation and the meter; or
 - (b) between such main and the meter unless and except so far as such pipes or fittings are covered over or intended to be covered over:
- (8) For the purposes of this section the expression “fittings” includes only the joints angles and connections used in placing or laying pipes.

Inspection
and testing
of meters.

37.—(1) The Corporation’s inspectors or servants shall at all reasonable times have access to and be at liberty to inspect take off remove test repair and replace meters which are the property of the Corporation and meanwhile to fix a substituted meter on the premises such inspection taking off removal testing repairing and replacing to be done at the expense of the Corporation.

(2) The expense of changing and testing such a meter which at the request of a consumer has been tested in manner provided by regulations made under section 12 of the Gas Regulation Act 1920 and found to register erroneously to a degree exceeding the degree admissible under the said regulations shall be borne by the Corporation but if the meter has been found not so to register erroneously shall be borne by the consumer.

Charges for
special reading
of meters.

38. When at the request of and for the convenience of any consumer the reading of any meter in any premises takes place at a time other than that of the usual periodical reading the Corporation may levy and recover such charges as they think fit not exceeding one shilling for each such special reading.

Charge for
hire of pre-
payment
meters.

39.—(1) The charge made by the Corporation for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the number of therms supplied and the maximum charge shall be three decimal six pence per therm if a cooking stove is

included and threepence per therm if a cooking stove is not included.

(2) The charge made by the Corporation for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the number of therms supplied and the maximum charge shall be one decimal eight pence per therm or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(3) The said charges shall include the providing letting fixing repairing and maintenance of the meter and fittings or of the meter (as the case may be) and the cost of collection and other costs incurred by the Corporation in connection therewith.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

40. Notices and demand notes orders or other documents in respect of charges leviable by and due to the Corporation for gas supplied by them may be served in the same manner as notices demand notes orders and other documents under the Rating and Valuation Act 1925 are by section 59 (Service of notices &c.) of that Act authorised to be served.

Service of gas notices and demand notes.
15 & 16 Geo. 5. c. 90.

41. If any person supplied with gas by the Corporation improperly uses or deals with the same so as to interfere with the efficient supply of gas by the Corporation to any consumer the Corporation may if they think fit cease to supply gas to such person.

For prevention of improper use of gas.

42. If the Corporation commence proceedings against any consumer for the summary recovery of any sum due for a supply of gas any other sum due or payable to the Corporation by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of gas provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

As to recovery of sums due for fittings &c.

43.—(1) If the Corporation shall at any time serve notice upon any consumer within the gas limits to the effect that an officer or servant of the Corporation has reported after inspection of any internal piping or appliance or other fitting provided in connection with the gas service on such consumer's premises that he is of opinion that any such piping

Power to compel repairs in case of danger.

PART III.
—cont.

appliance or fitting is in such a condition as to be dangerous to any person such consumer shall forthwith carry out such works as may be necessary to remove the cause of danger. If the consumer shall fail forthwith to carry out such works as aforesaid the Corporation may stop the gas from entering the premises of such consumer by cutting off the service pipe or by such other means as the Corporation shall think fit. Any expenses lawfully incurred by the Corporation in cutting off the gas from such premises may be recovered by the Corporation summarily as a civil debt.

(2) Nothing in this section shall apply to any internal piping appliance or fitting on the 'premises' (other than a dwelling-house) of any railway company nor shall the powers of this section be exerciseable in respect of such premises.

Power to lay
pipes in
private streets.

44. The Corporation may on the application of the owner or occupier of any premises within the gas limits abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation with this Act and any highway authority which would be the highway authority in respect of such street if it had been adopted as a highway repairable by the inhabitants at large shall be deemed to be (in addition to any other person) the persons having the control or management of any such street not being a street belonging to a railway company:

Provided that the Corporation shall not exercise their powers under this section in respect of any street belonging to a railway company except with the consent of such railway company but such consent shall not be unreasonably withheld nor shall the Corporation in carrying out the works authorised by this section unreasonably obstruct or interfere with the access to any such street.

Power to
purchase
lands by
agreement.

45. Subject as in this section provided the Corporation may for the purposes of the gas undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands referred to in the section of this Act of which the marginal note is "Maintenance and construction of gasworks &c." any lands which they may require for those purposes but the Corporation shall not create or permit a nuisance on any such lands and no lands shall be used by the Corporation for the purpose of manufacturing gas or residual products except the lands referred to in the said section:

Provided that the total quantity of the lands which the Corporation may hold for the purposes of the gas undertaking in addition to the lands referred to in the said section shall not at any one time exceed five acres in the aggregate.

46.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Corporation may retain hold and use for such time as they think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act for the purposes of the gas undertaking and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effecting any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interest therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions payable in respect of or affecting the lands other than the restrictions imposed by sections 127 to 131 of the Lands Clauses Consolidation Act 1845 but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

47. The proceeds of the sale of any lands or other property of the Corporation under the powers of this Act and the fines and premiums on any leases granted by the Corporation under this Act shall be distinguished as capital in the accounts of the gas undertaking and shall be applied in discharge of any money borrowed by the Corporation in respect of the gas undertaking but shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Minister and borrowed money discharged by the application of such sums shall not be re-borrowed.

Proceeds of
sale of
surplus lands.

48. The Corporation may hold purchase or take on lease houses cottages and other buildings for persons employed by them in connection with the gas undertaking and may erect fit up maintain and let any such buildings upon any

Dwelling-
houses for
Corporation's
employees.

PART III.
—cont.

Offices and
showrooms.

lands for the time being held by the Corporation for the purposes of the gas undertaking.

49. The Corporation may in connection with and for the purposes of the gas undertaking provide fit up and maintain showrooms and offices and exhibit specimen installations machinery fittings and other apparatus appliances articles and things used in connection with the manufacture and consumption of gas or resulting from the manufacture of gas and give demonstrations of the uses to which gas can be put and may appoint and pay persons for the purposes aforesaid and may by public advertisement or otherwise publish and make known any matters connected with or affecting the sale of gas and may do all such other acts as they may deem expedient to assist develop or promote the use of gas within the limits of supply.

Power to
purchase
material for
conversion
of residual
products.

50. Subject to the provisions of this Act the Corporation may for the purposes of the gas undertaking purchase from any source and use such material as is required to work up and convert any residual products arising directly or indirectly from the manufacture of gas by them or purchased by them under the powers conferred by section 4 of the Gas Undertakings Act 1929.

Power to cut
off supplies
where charges
&c. not
wholly paid.

51. The powers of the Corporation under section 16 of the Gasworks Clauses Act 1847 of stopping the supply of gas and under section 23 of the Gasworks Clauses Act 1871 of recovering the cost of cutting off the gas shall be exerciseable in any case in which any part of any charge or sum due to the Corporation for gas supplied by them or in respect of any apparatus or fitting let for hire by the Corporation or supplied by them on hire-purchase terms and which the Corporation are under obligation to maintain remains unpaid after the expiration of such reasonable period from the demand thereof as the Corporation may from time to time determine:

Provided that in any case where there is a bona fide dispute the Corporation shall not under the powers of this section stop the supply of gas until the matter in dispute shall have been determined.

Power to take
licences for
use of patents.

52. The Corporation may subject to the provisions of this Act but only for the purposes of the gas undertaking and not so as to acquire any exclusive right therein contract for take and use any licence or authority granting any right or privilege of working using or vending any invention subject to letters patent in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of residual products obtainable in or arising from such manufacture or from the materials used therein.

PART IV.

STREETS AND BUILDINGS.

53.—(1) The Corporation may enter into and carry into effect agreements with persons having a legal interest in lands adjoining any street in the borough vested in the Corporation for the adjustment of the boundary of any such street and for such purpose may give land including land forming part of the street in exchange for other land. For the purposes of this section the Corporation shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section. Adjustment
of boundaries
of streets.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the borough and during such period of one month any four inhabitant householders of the borough by themselves or their agent may appeal to a court of summary jurisdiction against the proposals and subsections (2) to (7) of the section of this Act of which the marginal note is "As to appeals" shall apply to any such appeal as if the proposals were a decision of the Corporation.

(3) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street. Provided that if the Corporation or any person in whom such site is vested desires that such telegraphic line should be altered the enactments of section 7 of the Telegraph Act 1878 shall thereupon apply in all respects as though the Corporation or the said person (as the case may be) were undertakers within the meaning of the said Act.

(4) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

54. The Corporation may make byelaws to prevent streets which have been laid out or constructed in accordance with byelaws made under the Public Health Acts from being altered in such a way that if at first so laid out or constructed they would have contravened the byelaws. Byelaws as to
alteration
of streets.

55.—(1) Every person who intends to lay out a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactment or byelaw with respect to streets and buildings from time to time in force Building line
in new streets.

PART IV.
—cont.

within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Corporation shall be deemed to have approved any building line unless within one month or (where the plan is submitted less than three clear days before a meeting of the council) five weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway authority) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the one month or five weeks aforesaid without their approval nor without the approval of the Corporation beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

51 & 52 Vict.
c. 52.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

(5) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the byelaws with respect to streets and buildings in force within the borough or of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) Any building line approved under subsection (1) or prescribed under subsection (2) of this section shall not be

approved or prescribed so that land belonging to a railway company and held or used by them in the exercise of their statutory powers for the purpose of railway works stations or depots shall lie between such building line and the centre of such new street.

PART IV.
—cont.

(7) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(8) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

56. For the purpose of preventing danger to pedestrians from traffic the Corporation may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools public baths public parks recreation grounds playing fields* alley-ways and passageways exercise the like powers of placing fences rails and posts on the sides of any footways or carriageways of such roads as under section 149 (Vesting of streets &c. in urban authority) of the Public Health Act 1875 are exercisable by them as respects roads so repairable and the Corporation may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

Power to place fences near school entrances &c.

57. The Corporation may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street in the borough repairable by the inhabitants at large. Provided that twenty-one days before commencing any work under this section which will materially reduce the width of any carriageway or footway the Corporation shall send notice of the proposed work to the Minister of Transport:

Power to vary width of carriageways and footways.

Provided also that the Corporation shall not exercise the powers of this section in respect of any street situate upon a bridge over the railway of a railway company or upon the approaches thereto without the previous consent in writing of the railway company as the case may require:

Provided further that the Corporation shall not exercise the powers of this section in regard to any road vested in the county council without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

58.—(1) The Corporation may on the deposit of a plan and sections of a new street in pursuance of any byelaw in force in the borough by order prohibit the erection or retention on land belonging to the owner of the land upon which such new

As to termination of new streets.

PART IV.
—cont.

street is proposed to be constructed or laid out of any wall or fence at either end of such new street in order to secure means of communication between such new street and any other street or intended street or for the purpose of securing an adequate opening at either end of the new street:

Provided that such prohibition shall not become operative until the streets on both sides of such wall or fence shall become highways repairable by the inhabitants at large.

(2) If any person acts in contravention of any order made by the Corporation under the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to lay
out grass
margins &c.
in streets.

59. The Corporation may lay out with grass margins or plant with trees or lay out as gardens any part of any street in the borough repairable by the inhabitants at large and may erect guards or fences for the protection of such grass margins trees or gardens and the Corporation may maintain in good order any grass margins trees gardens guards and fences in any such street and alter or renew the same and may add to the carriageway or footway of any such street any part of such grass margins parts planted with trees or parts laid out as gardens as aforesaid and may alter or re-arrange the parts of any street laid out as carriageway or footway respectively:

Provided always that nothing in this section contained shall empower the Corporation to prevent any person residing in any premises in or abutting on any such street having full and free right and liberty of access to and from such premises from and to the metalled or paved portion of such street:

Provided further that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by Act of Parliament and the Corporation shall be deemed to be the undertakers.

Prohibition
of persons •
vehicles &c.
on grass
margins.

60.—(1) In so far as the Corporation may indicate by notices conspicuously placed on or in proximity to any grass or other area which is situate in or forms part of or adjoins any street in the borough and is mown or maintained by the Corporation in an ornamental condition that such area is not intended for use by foot passengers horses cattle or vehicles any person who shall wilfully walk or otherwise proceed or lead ride or drive any horse cattle or vehicle on over or across any such area shall be liable to a penalty not exceeding twenty shillings.

(2) Nothing contained in this section shall affect—

(a) the duty of the Corporation under section 58 (Provision of footpaths and grass or other margins) of the Road Traffic Act 1930;

(b) the statutory rights of any statutory undertakers with respect to any area which is situate in or forms part of a street.

PART IV.
—cont.

61. The Corporation when carrying out any private street works in any street in the borough may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the private street works in any such street:

Planting of trees in private streets.

Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

62.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted:

Stopping up and diversion of highways.

Provided that the Corporation shall not make an application under this section in regard to a road vested in the county council without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place

ART IV.
—cont.

at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a road vested in the county council) on the Minister of Transport and the county council; and

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

42 & 43 Vict.
c. 40.
24 & 25 Geo. 5.
c. 38.
(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;

(b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;

(c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

PART IV.
—cont.

(7) Provided that—

(i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of every person having a legal interest in that land is produced to and deposited with the court; and

(ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the county of the Isle of Wight.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the said clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the said clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable.

(10) Any application or order under this section—

(a) may include two or more highways which are connected with each other;

(b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

63.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land

No building
allowed until
street defined.

PART IV.
—cont.

on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any person except with such consent to erect the building or any fence nearer to the centre of the street than the posts or other marks by which the width of the street has been defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of this section shall not extend or apply to any building (not being a dwelling-house) or fence constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers so long as any such building or fence is used by such company primarily for railway purposes.

No buildings
to be erected
until street
formed.

64.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Corporation so to do construct the carriageway of such new street or such part of the new street as may be required by the Corporation in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Corporation shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

55 & 56 Vict.
c. 37.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under section 150 (Power to compel paving &c. of private streets) of the Public Health Act 1875 or under the Private Street Works Act 1892 or under the local Acts for the time being in force within the borough.

(3) Any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

(4) The provisions of this section shall not apply to any new street or part of a new street belonging to a railway company and forming the approach to any station or depot of such company not being a new street or part of a new street intended to be laid out for dwelling-houses or shops.

65.—(1) At any time within one month or (where the deposit of the plans is made within three clear days before a meeting of the council) within five weeks after the deposit of the plans of any new building intended or adapted for use as a dwelling-house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Corporation may by notice in writing require the provision either before the building is erected or before it is sold let or occupied (as the Corporation shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets.

(2) If it appears to the Corporation to be necessary that the means of communication to be provided under this section shall be in the form of a street the Corporation may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Corporation to any person such person shall not begin to erect nor proceed with the erection of any building to which the notice relates nor shall he sell let or occupy such building (as the notice shall specify) until the notice of the Corporation has been complied with or until security has been given to the satisfaction of the Corporation that the notice will be complied with.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

66. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a washhouse or outbuilding forming part of or in proximity to a dwelling-house in the borough is a nuisance to any of the inhabitants of the borough to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as

Power to
order
alteration of
chimneys.

PART IV.
—cont.

aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

67.—(1) The Corporation may by order prohibit or restrict—

(a) the erection of buildings intended or adapted for use as dwelling-houses on any land which in their opinion is liable to flooding; or

(b) the erection of dwelling-houses on land which in their opinion would by reason of the nature of the subsoil involve danger or injury to health.

(2) Before any order made under this section shall come into force the Corporation shall submit the order to the Minister for his approval and shall give notice of the proposals of the order to the owner of any land affected by the order and by advertisement in a local newspaper circulating in the borough and in the London Gazette and in such other manner (if any) as the Minister may direct.

The said notice shall name a place where copies of the order can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the order may make representations thereon to the Minister and that any such person shall at the same time send a copy of his representations to the town clerk.

(3) The Minister shall consider any order submitted to him by the Corporation and any representations thereon which may be duly made and may approve the order submitted to him with or without modifications or may disapprove the order.

(4) Before approving any such order the Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held.

(5) The Corporation shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed order by advertisement in a local newspaper circulating in the borough and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The order shall take effect as approved by the Minister and shall come into force on a date to be fixed by him.

(7) The Corporation shall give notice of the provisions of any order approved by the Minister under this section by advertisement in a local newspaper circulating in the borough and otherwise in such manner as may be directed by the Minister.

(8) Any person who commits any breach of any order which has come into force under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(9) If at any time it appears to the Corporation that by reason of the execution of works of drainage or for any other reason an order made under this section may properly be revoked in whole or in part or any conditions imposed by such an order may properly be relaxed the Corporation may by order revoke the original order in whole or in part or relax any conditions imposed thereby.

The Corporation if requested by the owner of any land affected shall take into consideration the question of making an order under this subsection and if any difference arises between the Corporation and an owner as to whether the original order ought to be revoked in whole or in part or whether the conditions thereof ought to be relaxed and if so to what extent that difference may be referred by either party to the Minister and the Minister whose decision shall be final may make any order in the matter which the Corporation might have made.

68.—(1) On the approval of any plan for a new street or new streets submitted to the Corporation under any byelaw or enactment for the time being in force the Corporation may require provision for such intersecting streets as may be reasonably required.

(2) The expression “ intersecting street ” in subsection (1) of this section means a side or cross street forming a junction with another street.

(3) Any person who fails to comply with any requirement of the Corporation under subsection (1) of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

69.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from such premises the Corporation may either—

(a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or

(b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is

PART IV.
—cont.

strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

(3) If the Corporation allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle other than a motor-cycle subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

7 Edw. 7.
c. 53.

(4) Notwithstanding the provisions of section 18 (Crossing for cattle &c. over footways) of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof. When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

As to
hoardings
and similar
structures.

70.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street in the borough—

(i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 140 of the Housing Act 1936; or

26 Geo. 5. &
1 Edw. 8.
c. 51.

(iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove and if required by the owner or occupier shall re-erect so as not to contravene the provisions of subsection (1) of this section any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

(4) The provisions of this section shall not apply to any wall erected on land belonging to a railway company so long as such land is used by the railway company primarily for railway purposes.

71.—(1) Before placing or erecting any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street in the borough the person proposing to place or erect such hoarding wall or fence shall give notice of

As to erection
of hoardings
&c. at street
corners.

PART IV.
—cont.

his intention so to do to the Corporation and such notice shall be accompanied by plans and particulars of the hoarding wall or fence proposed so to be placed or erected.

(2) If the placing or erection of such hoarding wall or fence would constitute a danger to the traffic in the streets upon adjoining or near to which the same is proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Corporation may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice or (if the notice is submitted less than three clear days before a meeting of the council) within five weeks of such receipt the Corporation shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

15 & 16 Geo. 5.
c. 68.
25 & 26 Geo. 5.
c. 47.
(5) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925 or by section 1 or section 2 of the Restriction of Ribbon Development Act 1935.

Restriction on
advertisement
hoardings.

72.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful after the passing of this Act to erect in or within fifteen feet of any street in the borough any hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The consent of the Corporation under this section shall not be required for a hoarding or similar structure erected within any railway station or upon any property of a railway company for the purposes of such railway company except in so far as such hoarding or similar structure fronts upon a street repairable by the inhabitants at large.

73.—(1) The Corporation may by notice in writing require—Repair of
hoardings &c.

- (a) the owner of any hoarding wall or similar structure in the borough used for advertising purposes to maintain the same in good order and condition;
- (b) the person using any hoarding wall or similar structure for advertising purposes to maintain any advertising matter thereon in good order and condition.

(2) If such owner or other person shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover summarily as a civil debt from such owner or other person any expense incurred by them in so doing.

(3) The provisions of this section shall not apply to any hoarding wall or similar structure erected upon any property of a railway company except in so far as such hoarding wall or similar structure fronts upon a street repairable by the inhabitants at large.

74.—(1) In this section “sign” means any banner Signs over
streets.
streamer notice board sign or lettering for the purposes of advertisement or announcement (including the supports thereof) which is suspended or extends for more than two feet over any street or which extends for more than six inches over any street and is more than two feet six inches in height from the top to the bottom thereof.

(2) (a) If it appears to the Corporation that any sign which is placed over any street in the borough at the date of the passing of this Act is a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street over which it is placed they may by notice in writing require the owner of or person responsible for the placing of such sign to remove it or to comply with such conditions as may be specified in the notice within such period not being less than seven days as may be specified in the notice.

PART IV.
—cont.

(b) For a period of two years from the passing of this Act the foregoing provisions of this subsection shall not apply to any sign which was in use on the twenty-seventh day of November nineteen hundred and forty-four.

(3) (a) After the date of the passing of this Act no person shall without the consent of the Corporation place any sign over any street in the borough.

(b) The consent of the Corporation under this subsection shall not be withheld except on the ground that in their opinion the sign would be a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street and such consent may be given subject to such conditions as the Corporation may think fit.

(4) Any person who (a) neglects or refuses to comply with the requirement of any such notice as is referred to in subsection (2) of this section or (b) after the date of the passing of this Act places any sign over any street without the consent of the Corporation or without complying with any conditions attached to any such consent shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings and the Corporation may themselves remove any such sign and any expense incurred by them in so doing may be recovered by them from such person.

(5) The provisions of this section shall not apply to any sign erected by a railway company over any street belonging to and forming part of any station or depot of any such company or the approach thereto.

75.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway in the borough shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Corporation the safety and convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

76.—(1) In any case in which the forecourt of any premises adjoining a street in the borough or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger

obstruction or inconvenience to the public the Corporation may require the owner of the premises well and sufficiently to fence such forecourt from the street.

PART IV.
—cont.

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

77.—(1) If the Corporation shall by resolution determine that any stall structure or other erection on any forecourt is by reason of its character injurious to the amenities of the street in the borough in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street. Provision as to forecourts.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

78.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street in the borough signs indicating the classified road number of such street and the direction or the distance to towns railway stations public buildings and other places of a public character. Direction signs.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give to the owner of such house building or place notice of their decision so to do.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign otherwise than in the course of demolishing or altering the house or building shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1937 with respect to traffic signs and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

79. Where in the opinion of the Corporation repairs the cost of which will not exceed twenty pounds are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Corporation may execute As to urgent repairs of private streets.

PART IV.
—cont.

such repairs as they deem necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or affect any statutory provisions for the time being in force relating to private street works and private improvement expenses or similar matters or section 19 (As to urgent repairs to private streets) of the Public Health Acts Amendment Act 1907.

Powers on
inspection.

80.—(1) In exercising any powers of entry upon and inspection of any building or works in course of construction the surveyor and his assistants shall have from the builder of or contractor for such building or works free of expense all reasonable use and assistance of ladders scaffolding and plant in and about such building or works.

(2) Any person who shall refuse such use and assistance as aforesaid or shall obstruct the surveyor or his assistants in the use of such ladders scaffolding and plant as aforesaid shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

For protection
of Isle of
Wight Electric
Light and
Power
Company
Limited.

81. For the protection of the Isle of Wight Electric Light and Power Company Limited (in this section referred to as “the company”) the following provisions shall notwithstanding anything in this Act and unless otherwise agreed in writing between the Corporation and the company apply and have effect:—

21 (1) In this section “apparatus” means all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to the company:

(2) Whenever pursuant to any agreement entered into under the powers of the section of this Act of which the marginal note is “Adjustment of boundaries of streets” the Corporation propose to give up to or convey to any person having an interest in land any part of a street in or under which any apparatus is situate the Corporation shall (in addition to any notices given by them pursuant to that section) give to the company notice in writing of their proposal accompanied by a plan showing the position and dimensions of the portion of the street proposed to be given up or conveyed and notwithstanding any agreement entered into or grant or conveyance executed by the Corporation under that section the company their engineers and workmen shall have and may exercise the same powers rights and privileges with respect to such apparatus as if the land in or under which the apparatus is situate had continued to be part of the street or the company may

45 & 46 Vict.
c. 56.

at their option (and if reasonably so required by the Corporation or the owner of the land shall) divert or alter the position of such apparatus to such position in and at such depth below the footway or carriageway of the street as altered under the said powers as may be reasonable:

- (3) Nothing in the section of this Act of which the marginal note is " Building line in new streets " shall without the consent of the company apply to or affect any property occupied or used by the company for the purposes of their undertaking. Provided that such consent shall not be unreasonably withheld and any question whether or not any such consent has been unreasonably withheld shall be determined by the Minister:
- (4) Not less than twenty-eight days before the Corporation in the exercise of the powers of the section of this Act of which the marginal note is " Power to vary width of carriageways and footways " add to the carriageway of a street any portion of the footway in or under which any apparatus is for the time being situate the Corporation shall give to the company notice in writing of their intention so to do accompanied by a plan and section of the intended alteration and the company may if it is reasonably necessary (and if reasonably so required by the Corporation shall) alter the position of any such apparatus in or under such footway by relaying the apparatus in such position under the footway and at such depth as the company may determine:
- (5) Whenever under the powers of the section of this Act of which the marginal note is " Power to lay out grass margins &c. in streets " the Corporation add to the footway or carriageway of any street any grass margin in or under which any apparatus is for the time being situate the company if it should be reasonably necessary in order to safeguard the apparatus may at their option either—
 - (i) relay the apparatus in or under the reduced grass margin (if any) of the street; or
 - (ii) lower the apparatus so as to provide adequate protection therefor against injury; or
 - (iii) if the grass margin be added to the carriageway of the street and there be a footway on the other side of the street relay the apparatus in that footway at such depth as will provide protection against injury:

PART IV.
—cont.

- (6) The Corporation shall not exercise the powers of the section of this Act of which the marginal note is "Planting of trees in private streets" so as to cause damage to or to obstruct or render less convenient the access to any apparatus:
- (7) Whenever by virtue of the section of this Act of which the marginal note is "Stopping up and diversion of highways" any highway or part of a highway in which any apparatus is for the time being laid or placed is stopped up or diverted the company shall be at liberty—
 - (i) to remove the apparatus to and relay the same in the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other situation as the company may reasonably determine; or
 - (ii) if reasonably necessary so to do to provide and lay in such substituted highway or other situation in lieu of such existing apparatus apparatus similar and equally suitable thereto:
- (8) Not less than fourteen days before the Corporation pursuant to the section of this Act of which the marginal note is "Crossings for horses or vehicles over footways" require the construction of a carriage-crossing across any footway in or under which any apparatus is for the time being situate the Corporation shall give notice in writing to the company and if in consequence of the construction of the carriage-crossing across such footway it shall be reasonably necessary to alter the position or depth of the apparatus under the footway the company may (and if so required by the Corporation shall) alter the apparatus by relaying the apparatus in such position and at such depth as may be reasonable:
- (9) The company within seven days after the receipt of the notice from the Corporation referred to in subsections (2) (4) and (6) as the case may be of this section shall give to the Corporation not less than seven days' notice of their intention to divert or alter the position or depth of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of the subsection in question and shall at the same time deliver to the Corporation a plan and section of the proposed diversion alteration or relaying. If such plan and section are not disapproved by the Corporation within fourteen days from the receipt thereof the position and depth of the apparatus shown thereon shall be deemed to be reasonable:

(10) The Corporation shall repay to the company the reasonable expenses incurred by them of or in connection with any diversion alteration lowering removal or relaying of apparatus or substitution of new apparatus under the provisions of this section and the reasonable costs of and incidental to the cutting off of such apparatus or any other apparatus and of and incidental to any other works or things rendered reasonably necessary in consequence of any such diversion alteration lowering removal relaying or substitution. Provided that if the company pursuant to subsection (4) of this section relay any apparatus under a footway at a greater depth than that of the apparatus before it is relaid the additional expense incurred by the company by reason of relaying the apparatus at such greater depth shall be borne by them:

PART IV.
—cont.

(11) (a) Any difference which may arise between the Corporation and the company under this section (other than a difference arising under subsection (3) and a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the parties or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Electrical Engineers;

(b) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the company may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be possible interference with any purpose for which the apparatus is used.

PART V.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

82.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to be furnished in case of notifiable disease.

PART V.
—cont.

(2) Any occupier refusing or neglecting to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

Parents &c. to
notify certain
diseases.

83.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school in the borough who is aware of or has reason to suspect the occurrence of any disease to which this section applies in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) The diseases to which this section applies are notifiable diseases as defined by the Act of 1936 and any other disease which the Minister by regulation made under section 143 of the Act of 1936 declares to be a notifiable disease for the purpose of this section.

(3) For the purpose of this section the expression " school " shall include a Sunday school.

Restrictions
on attendance
at schools and
places of
assembly.

84.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

(a) who is or has been attending any school or any part thereof which for the time being is closed by order of the education authority or by the Corporation with the view of preventing the spread of a disease to which this section applies; or

(b) who is suffering from a disease to which this section applies; or

(c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon

application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by the Act of 1936 and any other disease which the Minister by regulation made under section 143 of the Act of 1936 declares to be a notifiable disease for the purpose of this section.

(3) In this section the expression " day school " means a school (not being a school maintained or provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

85. The Corporation may provide and supply (with or without charge therefor) to any registered medical practitioner antidotes and remedies against any notifiable disease.

Supply of anti-
dotes against
notifiable
diseases.

86.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 or section 108 of the Factories Act 1937 applies shall where practicable and if required by the Corporation provide to the reasonable satisfaction of the Corporation and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed.

Sanitary
conveniences
for workmen.
1 Edw. 8. &
1 Geo. 6. c. 67.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds, and to a daily penalty not exceeding forty shillings.

87.—(1) If a water-closet drain or soil-pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

Improper
construction
or repair of
water-closet
or drain.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if the person charged proves to the satisfaction of the court that he has used due diligence to prevent the commission of

PART V.
—cont.

the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Byelaws as to
tipping refuse.

88.—(1) Section 81 of the Act of 1936 shall extend to empower the Corporation to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any refuse tips so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

or

or

(2) Any byelaws made by the Corporation in pursuance of this section may contain provisions for imposing on offenders against the same for every offence a penalty not exceeding the sum of fifty pounds and a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Act of 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 inclusive and section 100 of that Act shall apply accordingly.

(4) A person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Act of 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a daily penalty under the byelaws and to a penalty under section 95 of the Act of 1936 (as so applied) for failing to comply with an order or contravening an order.

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by a railway company for the purpose of constructing widening or maintaining any railway canal dock or wharf works.

PART VI.
FOOD.

Notice of
slaughter of
animal unfit
for food.

89.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to the medical officer or the sanitary inspector of such intention and shall on the application of the medical officer or the sanitary inspector within six weeks from the date

of such slaughter furnish such information within his knowledge as the medical officer or the sanitary inspector may reasonably require for the purpose of enabling inquiries to be made to trace the disposition of the carcasses or any part thereof.

PART VI.
—cont.

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 apply.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder. 1 Edw. 8. & Geo. 6. c. 70.

90.—(1) As from the commencement of this section the following provisions shall have effect in the borough:— Registration of hawkers of meat fish fruit and vegetables and premises.

(a) any person other than a person keeping open shop for the sale of meat or meat food product or fish or fruit or vegetables who shall by himself or by any person employed by him sell or offer or expose for sale any meat or meat food product or fish or fruit or vegetables from any cart barrow or other vehicle or from any basket pail tray or other receptacle; and

(b) any premises used or proposed to be used as storage accommodation for any meat or meat food product or fish or fruit or vegetables intended for sale from any such vehicle or receptacle;

shall be registered with the Corporation in the case of any such person by himself and in the case of any such premises by the owner or occupier or intending owner or occupier thereof.

(2) (a) No person other than a person keeping open shop for the sale of meat or meat food product or fish or fruit or vegetables shall by himself or by any person employed by him sell or offer or expose for sale any meat or meat food product or fish or fruit or vegetables from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is so registered as aforesaid.

(b) No premises shall be used as storage accommodation for any meat or meat food product or fish or fruit or vegetables intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless such premises are so registered as aforesaid.

PART VI.
—cont.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Corporation may refuse to register any such person or premises as is or are referred to in subsection (1) of this section or (after giving one month's notice in writing to the person registered or in whose name any such premises are registered) may revoke the registration of any such person or premises if they are satisfied (as regards any such person) that the public health is or is likely to be endangered by any act or default of such person in relation to the quality storage or distribution of the meat or meat food product or fish or fruit or vegetables as the case may be or (as regards any such premises) that such premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for meat or meat food product or fish or fruit or vegetables intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) In and for the purposes of this section—

PART VI.
—cont.

“meat” means the flesh of cattle swine sheep or goats including bacon and ham and edible offal and fat which is sold or intended for sale for human consumption;

“meat food product” means any article of food intended for sale for human consumption and derived or prepared in whole or in part from meat.

PART VII.

PROVISION OF CONCERT HALLS &c.

91.—(1) The Corporation may provide concert halls entertainment rooms reading rooms pavilions and bandstands with all necessary and suitable offices refreshment rooms kitchens cloakrooms lavatories conveniences and appliances. Power to provide concert halls &c.

(2) For the purposes aforesaid the Corporation may—

(a) erect or adapt buildings in any public park or pleasure ground belonging to them;

(b) acquire buildings or acquire land and erect buildings thereon;

(c) with the consent of the Minister adapt any premises or erect buildings on any land belonging to them but not already appropriated to entertainment purposes;

and may provide erect and maintain shops and offices as part of the buildings so acquired or erected.

(3) The Corporation may furnish and equip any premises provided by them under this section.

92.—(1) The Corporation may use or allow to be used or let any premises provided under subsection (1) of the last preceding section for concerts and other entertainments and may themselves provide or arrange for the provision of or contribute towards the expenses of any such concerts or entertainments and may make or allow to be made such charges as they think fit in connection therewith: Power to provide &c. entertainments.

Provided that—

- (a) the Corporation shall not themselves use any such premises for a cinematograph theatre except for the exhibition of a cinematograph film relating to the functions of county councils or other local authorities nor shall they grant or let the use of any such buildings for the purposes of a theatre music-hall or cinematograph theatre except on the best terms that can be obtained;

PART VII.
—cont.

15 & 16 Geo. 5.
c. 71.

(b) the power of the Corporation themselves to provide entertainments shall include a power to provide concerts and pierrot or other entertainments whether theatrical costume is or is not used in connection therewith and either with or without appropriate scenery but save as aforesaid the Corporation shall not provide or arrange for the provision of stage plays performed by persons other than members of any amateur dramatic society or any entertainment for which scenery or theatrical costume is used and which forms a complete programme of variety entertainments as usually given at a music-hall;

(c) the net amount of the expenses incurred by the Corporation under this section when added to the net amount of the expenses incurred by them in the provision of entertainments under section 56 of the Public Health Act 1925 shall not in any one year exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one penny and a third in the pound:

Provided that the limitation hereby imposed shall not apply in respect of any excess rate which may be approved by the Minister under the provisions of subsection (3) of section 56 of the Public Health Act 1925.

(2) The Corporation may provide and sell or authorise the provision and sale of programmes of any concerts or entertainments given in pursuance of this section.

(3) The Corporation may make byelaws for securing good and orderly conduct during any concerts or entertainments given in pursuance of this section.

(4) Nothing in this or in the last preceding section shall be taken to dispense with the consent of the Minister of Education to any appropriation lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been passed.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

(6) No power conferred upon the Corporation by this or the last preceding section shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the

Corporation without an order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

PART VII
—cont.

93. When any portion of any park or place of public resort or recreation is set apart by the Corporation for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Corporation may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Corporation may think fit:

Charges for
and letting of
parks &c.
for games.

Provided that nothing in this section shall empower the Corporation to permit at one and the same time the exclusive use of more than fifty per centum of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than twenty-five per centum of the total area of all such parks and places.

PART VIII.

GOOD RULE AND GOVERNMENT.

94.—(1) It shall be lawful for the Corporation at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports or illuminations or on emergencies to cause barricades to be erected across any of the streets of the borough and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings..

As to barriers
in streets.

(2) For the purpose of the erection of such barricades the Corporation may construct or place and maintain in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient.

95.—(1) The powers conferred by section 21 (Power to make orders for preventing obstructions in the streets during public processions &c.) of the Town Police Clauses Act 1847 shall within the borough extend to enable the Corporation on days appointed for ceremonies public processions rejoicings fairs exhibitions carnivals races sports illuminations or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours.

Power to make
regulations
as to traffic
on carnival
&c. days.
10 & 11 Vict.
c. 89.

PART VIII.
—cont.

(2) The Corporation shall forthwith upon issuing any direction in pursuance of this section give notice thereof to the chief officer of police.

Notice of
processions
to be given.

96.—(1) Any person intending to organise or form a public or ceremonial procession or a circus procession or procession of wild animals through the streets of the borough (other than a public or ceremonial procession which is regularly held through such streets) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at the office of the town clerk thirty-six hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

(2) The Corporation shall as soon as reasonably practicable after receipt of such notice communicate the information therein contained to the chief officer of police.

(3) If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice any person organising or conducting such procession shall be liable to a penalty not exceeding five pounds.

Compensation
for injuring
lamps &c.

97. Every person who negligently breaks throws down or otherwise damages any public lamp or lamp-post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Corporation shall make full compensation to the Corporation for the damage done and such compensation to an amount not exceeding twenty pounds shall be recoverable summarily as a civil debt.

Restriction on
erection of
stands &c.

98.—(1) Every person intending to erect any stand or structure in the borough for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such conditions as the Corporation may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

(2) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding two pounds.

(3) The provisions of this section shall not apply to any stand or structure erected by a person who is the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

99. The Corporation shall not exercise the powers of the sections of this Act of which the respective marginal notes are :—

PART VIII.
—cont.
For protection of railway companies.

- “ As to barriers in streets; ”
- “ Power to make regulations as to traffic on carnival &c. days; ”

in such manner as to cause obstruction to or interference with the access to or exit from any station or depot of a railway company except with the consent of such company.

PART IX.
FINANCE.

100.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table :—

Power to borrow.

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The purchase of the undertaking of the company including the payment of any sum required for the purpose of paying off the mortgage of the company or for paying the costs and expenses incidental to the transfer of the said undertaking to the Corporation (other than the costs of this Act) so far as the same are payable by the Corporation and of any sums payable to any director officer or servant as compensation under this Act.	The sum requisite	Forty years from the date or dates of borrowing.
(b) The alteration enlargement extension improvement or renewal of the gas undertaking and the provision of new and the extension of existing gas mains.	£28,000	Thirty years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

PART IX.
—cont.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) For the purposes of Part IX of the Act of 1933 the fixed period for the payment of the mortgage transferred to the Corporation under the section of this Act whereof the marginal note is “ As to company’s mortgage ” shall be forty years.

Saving for
emergency
restrictions on
borrowing.
2 & 3 Geo. 6.
c. 62.
3 & 4 Geo. 6.
c. 20.

101.—(1) So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) without such consent.

(2) It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Application of
Act of 1933
to existing
sinking funds.

102. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of any stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Creation of
stock as
consideration
for transfer.

103.—(1) Fourteen days before the day of transfer there shall by virtue of this section be created so much stock to be called “ Newport (Isle of Wight) Corporation four per centum gas stock ” as the Corporation are required to issue under the sections of this Act of which the marginal notes are respectively “ Consideration for transfer ” and “ Compensation to directors and officers of the company.”

(2) The provisions of the Act of 1933 shall with any necessary modifications apply with reference to such stock as if the Corporation were exercising a power to borrow money for payment of a sum equal to the nominal amount of such stock.

(3) Such stock shall carry interest (payable half-yearly) as from the day of transfer and be transferable in multiples of one pound and shall be redeemable by the Corporation at par after the expiration of forty years from the day of transfer but the Corporation may purchase the stock or any part thereof by agreement for cancellation with the holders at any time

The whole of such stock shall be redeemed or purchased and extinguished at or before the expiration of forty years from the day of transfer.

PART IX.
—cont.

(4) Such stock and all interest accrued or to accrue due thereon shall be charged indifferently on the revenues of the Corporation.

(5) The provisions of the Local Authorities (Stock) Regulations 1934 which are set out in the first column of the Second Schedule to this Act and any regulations amending the same shall subject to the provisions of this Act and subject to the modifications set out in the second column of the said schedule apply to the creation issue transfer and redemption of and other dealings with the stock created by virtue of this section as if the same were duly created and issued by the Corporation under the provisions of the Act of 1933 and the Local Authorities (Stock) Regulations 1934:

Provided that the amounts of the several contributions from the revenues of the Corporation payable in each year for the redemption and extinction or purchase and extinction of stock issued under this section shall be determined by paragraph (a) of article 7 (1) of the Local Authorities (Stock) Regulations 1934 and the rate per centum per annum for the purposes of those provisions shall be three pounds or such other rate as the Minister may from time to time approve.

104.—(1) Notwithstanding anything contained in this or Consolidated any other Act or Order on and after the thirty-first day of March nineteen hundred and forty-five the Corporation may (if they think fit) establish a fund to be called "the consolidated loans fund" to which shall be paid—

- (a) all moneys borrowed by the Corporation by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

PART IX.
—cont.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of authorised securities the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve capital renewal and repairs depreciation contingency superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required for the purposes thereof and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and
- (b) There shall be paid out of the consolidated loans fund to the general rate fund an amount equivalent to the interest on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

PART IX.
—cont.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made in like manner as the original scheme.

105.—(1) Notwithstanding anything in any Act or Order relating to the harbour and the harbour undertaking of the Corporation authorised by the River Medina Navigation Act 1852 all receipts from the said harbour and harbour undertaking shall be paid into and form part of the general rate fund and all expenses incurred in respect of the said harbour and harbour undertaking shall be paid out of that fund or out of the general rate and any provision of any such Act or Order which is inconsistent with the provisions of this section shall cease to have effect.

Amendment
of River
Medina
Navigation
Act 1852
and River
Medina
Navigation
Order 1898.

(2) Section 16 (In case tonnage rates &c. insufficient a borough rate may be made) of the River Medina Navigation Act 1852 and section 4 (Application of income) and section 5 (Separate harbour accounts) of the River Medina Navigation Order 1898 are hereby repealed.

106. The sections of this Act of which the marginal notes are respectively—

“ Amendment of River Medina Navigation Act 1852 and River Medina Navigation Order 1898 ”;

“ Accounts ”; and

“ Application of revenue of undertakings ”;

Date of
operation
of certain
sections and
repeal.

shall be deemed to have come into operation on the first day of April nineteen hundred and forty-six.

107.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the Corporation undertakings (each of which is in this section separately referred to as “ the undertaking ”) on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

Accounts.

(a) the working and establishment expenses and cost of maintenance of the undertaking;

(b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking or used for those purposes in pursuance of

PART IX.
—cont.
8 & 9 Geo. 6.
c. 18.

section 8 of the Local Authorities Loans Act 1945 and the section of this Act of which the marginal note is "Consolidated loans fund";

- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain; and
- (f) any money expended on any of the purposes mentioned in the next succeeding section other than the purpose mentioned in paragraph (e) of this subsection.

(2) The Corporation shall show in their accounts relating to the undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Provisions as
to surplus
gas revenue.

108. If in respect of any financial year the receipts of the Corporation on account of the revenue of the gas undertaking as shown in the accounts of that undertaking pursuant to the section of this Act of which the marginal note is "Accounts" shall exceed the aggregate of the moneys paid or expended for the several purposes mentioned in paragraphs (a) to (f) of subsection (1) of that section then—

- (a) If the reserve fund in respect of the gas undertaking does not amount to more than one-twentieth of the aggregate capital expended for the time being upon that undertaking the charges which would otherwise have been made for gas supplied by the Corporation during the next following year shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the said excess;
- (b) If the said reserve fund amounts to more than one-twentieth of the said aggregate capital the Corporation shall fix such amount as they may think fit (not being less in any case in which the said excess is more than a sum equal to one and a half per centum of the outstanding debt of the gas undertaking than

the difference between that sum and the said excess) and the charges which would otherwise have been made for gas supplied by the Corporation during the next following year shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the amount so fixed.

PART IX.
—cont.

109.—(1) If in respect of any year the moneys received by the Corporation on account of the revenue of any of the Corporation undertakings (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the section of this Act of which the marginal note is "Accounts" the Corporation may in respect of that year (if they think fit) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) in the reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) in the renewal and the construction extension or improvement of any works and conveniences for the purposes of the undertaking; and
- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as the Corporation may from time to time think reasonable and (unless the amounts so set aside are used under the provisions of the section of this Act of which the marginal note is "Consolidated loans fund") investing the same in statutory securities until the reserve fund so provided amounts to the maximum of the reserve fund for the time being prescribed by the Corporation.

(2) The sum standing in the depreciation account for works on leasehold land formed by the company and transferred to the Corporation on the day of transfer and any reserve fund or contingency or depreciation fund which has been provided in respect of any of the Corporation undertakings and which was in existence on the first day of April nineteen hundred and forty-five shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

PART IX.
—cont.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed; or
 - (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking; or
 - (c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;
- and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

Capital fund.

110.—(1) The Corporation may establish a fund to be called “ the capital fund ” to which they may pay any sums derived from the sale of corporate estate the balance of the general rate fund in hand at the close of any year and such other sums from the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) as the Corporation may by resolution direct not being moneys directed by law to be applied to any other purpose:

Provided that—

- (a) any sum directed by the Corporation to be paid to the capital fund from the general rate fund (exclusive of the sum equal to the interest earned on the capital fund and the income (if any) arising from the application of the fund to the purposes authorised) shall not exceed in any year the equivalent of a rate of two pence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925;
- (b) payments into the capital fund shall cease to be made whenever the said fund amounts to the sum of twenty-five thousand pounds.

(2) The Corporation may apply the moneys in the capital fund for the purpose of defraying (to an amount not exceeding five thousand pounds in any one transaction) expenditure to which capital is properly applicable other than expenditure in connection with the Corporation undertakings.

(3) (a) Pending the application of the capital fund to the purpose authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purpose authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of corporate land which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund under those provisions may if the Corporation think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation:

Provided that where the advance is in the exercise of a statutory borrowing power such period shall not exceed the period prescribed for the repayment of moneys borrowed under that power.

111.—(1) The Corporation may if they think fit in any year carry from the general rate fund to the credit of a fund to be called “the renewal and repairs fund”—

(a) any sum not exceeding an amount equal to twelve and one-half per centum of the cost incurred by the Corporation (otherwise than for the purposes of the Corporation undertakings) in connection with the provision of horses carts mechanically propelled vehicles stables depots boilers and equipment and apparatus in connection therewith as shown in the accounts at the thirty-first day of March in any such year; and

(b) any sum not exceeding the average annual cost incurred by the Corporation during the previous three years in connection with the maintenance and repair of buildings (other than buildings forming part of or used for the purposes of the Corporation undertakings or buildings in respect of which the Corporation are required by the Housing Acts to keep a housing repairs account).

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed five thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for the repair maintenance and

PART IX.
—cont.

renewal of the things referred to in subsection (1) of this section which are not comprised in the Corporation undertakings and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses but this section shall not apply to any appliances works equipment and buildings for the purposes of any of the Corporation undertakings or to buildings in respect of which the Corporation are required by the Housing Acts to keep a housing repairs account.

(4) Any moneys standing to the credit of any existing fund formed by the Corporation for the purposes for which the renewal and repairs fund is authorised to be formed shall be carried to the credit of that fund in the accounts of the Corporation.

(5) (a) Pending the application of the renewal and repairs fund to the purposes authorised in subsection (3) of this section the moneys in the fund shall unless applied in any other manner authorised by this Act be invested in statutory securities.

(b) Any income from the investment or use of the moneys in the renewal and repairs fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

PART X.

MISCELLANEOUS.

Power to
establish
information
bureaux.

112. The Corporation may establish and maintain or may subscribe towards the establishment and maintenance of an information bureau or information bureaux in the borough for the purpose of supplying information with regard to the borough and neighbourhood and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

Ejection
of steam
and waste
gas to
annoyance
of public.

113.—(1) All steam or waste gas ejected from any stationary engine in the borough or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public.

(2) Any person who shall cause or permit steam or waste gas or condensing water to be discharged contrary to the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

PART X.
—cont.

(3) The provisions of this section shall not apply to any locomotive used by a railway company.

114.—(1) Every person who uses a stationary internal combustion engine in the borough shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

Silencers for
internal
combustion
engines.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Corporation to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

115. Whenever the Corporation the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

In executing
works for
owner
Corporation
liable for
negligence
only.

PART X.

—cont.

Recovery of
rate &c.
from persons
removing.

116. If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate or any water or gas rate or charge which may be due from him to the Corporation and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein to seize forthwith and detain the goods and chattels of the defaulter until the complaint is determined upon the return of the summons.

Recovery of
rates from
certain owners.

117.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “ owner ” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the Corporation.

As to appeals.

118.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part IV (Streets and buildings) Part V (Infectious disease and sanitary provisions) or Part VI (Food) of this Act or the section of this Act of which the marginal note is “ Restriction on erection of stands &c.” may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement

refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

PART X.
—cont.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Corporation shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

119. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act or any local enactment for the time being in force in the borough as if the same were re-enacted therein. Application of section 265 of Public Health Act 1875.

PART X.

—cont.
Apportionment of expenses in case of joint owners.

120. Where under the provisions of this Act or any local enactment for the time being in force in the borough the Corporation construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Breach of conditions of consent of Corporation.

121. Where under this Act or under any general or local Act the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Restriction on right to prosecute.

122. Section 298 (Restriction on right to prosecute) of the Act of 1936 shall apply to offences created by or under Part IV (Streets and buildings) Part V (Infectious disease and sanitary provisions) Part VI (Food) and the sections of this Act of which the marginal notes are respectively "Power to make regulations as to traffic on carnival &c. days" and "Ejection of steam and waste gas to annoyance of public" as if they were offences created by or under that Act.

As to byelaws.

123. As respects byelaws made under this Act the confirming authority for the purposes of section 250 (Procedure &c. for making byelaws) of the Act of 1933 shall be the Minister.

Inquiries by Minister.

124. The Minister the Minister of Fuel and Power and the Minister of Transport may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them respectively or the giving of consents under this Act and section 290 (Power of government departments to direct inquiries) of the Act of 1933 shall apply accordingly.

Compensation how to be determined.

125. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method of determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 (Compensation to individuals for damage resulting from exercise of powers under Act) of the Act of 1936.

Damages and charges to be settled by court.

126. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any

penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

PART X.
—cont.

127. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 and unless otherwise agreed the arbitrator shall be appointed by the Minister.

Application of
Arbitration
Acts.

128. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Application of
provisions of
Public Health
Act 1936.

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 277 (Power of councils to require information as to ownership of premises);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 293 (Recovery of expenses &c.);

Section 294 (Limitation of liability of certain owners);

Section 295 (Power of local authority to grant charging orders);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

PART X.
—cont.

Section 304 (Judges and justices not to be disqualified by liability to rates) ;

Section 328 (Powers of Act to be cumulative) ;

Section 329 (Saving for certain provisions of the Land Charges Act 1925) :

Provided that the said sections 287 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part IV (Streets and buildings) and Part V (Infectious disease and sanitary provisions) of this Act.

Saving for
indictments
&c.

129. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Commence-
ment of
certain
provisions of
this Act.

130.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the sections of this Act of which the marginal notes are—

“ Parents &c. to notify certain diseases ” ;

“ Restrictions on attendance at schools and places of assembly ” ;

“ Notice of slaughter of animal unfit for food ” ;

“ Registration of hawkers of meat fish fruit and vegetables and premises.”

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises

used for any purpose it shall be lawful for any person who when such provision came into operation—

PART X.
—cont.

- (a) was carrying on any such business or using any premises for any such purpose; and
- (b) had made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is “As to appeals.”

131. As from the day of transfer—

- (a) the provisions of the Newport (Isle of Wight) Gas Amendment (Charges) Order 1922 set out in the Third Schedule to this Act shall apply to the gas undertaking except that section 3 (Standard price) of that Order shall be read and have effect as if the word “maximum” were substituted for the word “standard”; and repeal of Acts and Orders relating to gas company.
- (b) the Newport (Isle of Wight) Gas Acts 1870 and 1901 the Newport (Isle of Wight) Gas Order 1936 and the provisions of the said Order of 1922 not set out in the Third Schedule to this Act shall be and are hereby repealed.

132. The provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development. Saving for Town and Country Planning Acts &c.

133. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Minister of Transport respectively without the consent in writing of the Commissioners of Crown Lands or the Minister of Transport as the case may be on behalf of His Majesty first had and obtained for that purpose. Crown rights.

PART X.
—cont.
Costs of Act.

134. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of money to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the foregoing Act.

The FIRST SCHEDULE.

GAS LANDS.

(1) A piece of land described in the Newport (Isle of Wight) Gas Act 1870 as in the parishes of Newport and Whippingham bounded on the north south and west by land called the Marsh the property or reputed property of the mayor aldermen and burgesses of the borough of Newport and on the east partly by land called King's Field belonging or reputed to belong to John Henry Hearn Esq. and partly by the piece of land next hereafter described.

(2) A piece of land described in the said Act as situate in the parish of Whippingham aforesaid adjoining the last-mentioned piece of land on the east side thereof being part of the said land called King's Field and bounded on the north and east by the said land called King's Field and on the south by the occupation road leading to the said piece of land firstly hereinbefore described.

(3) A piece of land described in the Newport (Isle of Wight) Gas Act 1901 as situate in the borough bounded on the north by a public road known as Hill Side leading from Fairlee Road to the New Quay on the east by land belonging or reputed to belong to the county council of the Isle of Wight and on the south and west by lands belonging or reputed to belong to the company.

(4) A piece of land described in the last-named Act as situate in the borough bounded on the north by the land belonging to the said county council on the east by the said Fairlee Road and on the south and west by lands of the company.

(5) A piece of land described in the Newport (Isle of Wight) Gas Order 1936 situate in the borough of Newport in the administrative county of the Isle of Wight containing 0.19 of an acre or thereabouts bounded on or towards the north by land belonging or reputed to belong to the mayor aldermen and burgesses of the said borough on or towards the south by the road on the northerly side of the viaduct of the Southern Railway Company leading to the quay of the said mayor aldermen and burgesses on or towards the west by the said quay and on or towards the east by the land first described in the schedule to the said Act of 1870.

The SECOND SCHEDULE.

PROVISIONS OF LOCAL AUTHORITY (STOCK) REGULATIONS 1934
APPLIED.

Article of Local Authorities (Stock) Regulations 1934.	Modification.
5 to 7 (inclusive)	—
9 to 13 (inclusive)	—
16 to 19 (inclusive)	—
21 to 23 (inclusive)	—
24	The omission of the words " Unless the local authority have compounded for stamp duty " and the words " notwithstanding anything in any resolution of the local authority or in these regulations."
25 to 31 (inclusive)	—
37 to 40 (inclusive)	—
42	—
43	The omission of paragraphs (a) and (b) and of the words " stock certificate to bearer " in paragraph (c).
44	—
45	The omission of paragraph (1).
The schedule	Only so much as relates to article 44 of the regulations.

The THIRD SCHEDULE.

PROVISIONS OF THE NEWPORT (ISLE OF WIGHT) GAS (CHARGES)
ORDER 1922 SAVED FROM REPEAL.

Declared
calorific
value.

2.—(1) The undertakers shall within three months from the commencement of this Order give notice by advertisement in the London Gazette of the calorific value of the gas which they intend to supply (in this Order referred to as " the declared calorific value ") and of the date (in this Order called " the declared date ") from which they will supply gas of the declared calorific value which date shall not be more than three months from the date of the notice.

(2) After the declared date the charges which the undertakers may make in respect of the supply of gas shall be such charges as are hereinafter authorised for thermal units supplied in the form of gas and any provision in force at the date of commencement of this Order

of any Act or Order having the force of an Act in relation to the quality of gas supplied by the undertakers shall cease to have effect:

Provided that this subsection shall have effect as respects the charges to any particular consumer as from the first reading by the undertakers of that consumer's meter after the declared date and not earlier.

(3) A copy of the notice referred to in subsection (1) of this section shall be sent to each local authority and to every consumer and to the Board of Trade.

3. After the declared date the standard price in respect of gas supplied by the undertakers shall be sixteen pence per therm. Standard price.

5. The number of therms supplied to any consumer shall be ascertained by multiplying the number of cubic feet of gas registered by the consumer's meter by the number of British thermal units comprised in the declared calorific value and dividing the product by one hundred thousand. Measure of
therms
supplied.

6. If at any time the undertakers intend to alter the declared calorific value they shall give notice of their intention to supply as from a date to be therein specified and being not less than three months from the date of such notice gas of such calorific value as may be declared in the notice and the calorific value so declared shall as from the date so specified be the declared calorific value for the purposes of this Order. Variation of
declared
calorific value.

The notice required by this section shall comply with the requirements of this Order with regard to the notice in which the calorific value was originally declared.

8. If the declared calorific value is less than 350 British thermal units the minimum permissible pressure at which the gas may be supplied shall be that specified in the schedule to this Order. Pressure.

SCHEDULE.

Where the declared calorific value is below 350 British thermal units and not below 300 British thermal units the minimum permissible pressure shall be two and a half inches.

Where the declared calorific value is below 300 British thermal units the minimum permissible pressure shall be such pressure (not being less than three inches) as shall be prescribed by the gas referees.

Ch. xxi. *Newport (Isle of Wight) Corporation* 9 & 10 GEO. 6.
Act, 1946.

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(P. 4761)